



All correspondence to:

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**

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Freedom of Information Request

Applicant

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**

Contact

officeexecutorowenrobertlewis@gmail.com

Date

11 September 2026

Request under the Freedom of Information Act 1982 (Vic)

This request is made by the Trustee in the course of trust administration, for the purpose of maintaining a complete and accurate regulatory record.

No assertion of liability, fault, regulatory breach or legal error is made. All rights are reserved.

Documents Requested

The Trustee seeks access to the following documents held by the Department of Transport and Planning (DTP) concerning the assessment and determination of the amendment to Planning Permit PL-SP/05/0461 for the Lal Lal Wind Farm, determined on 15 May 2026 and recorded as PL-SP/05/0461-3.

For identification purposes:

- the amendment application proposed amendment of Condition 23 and deletion of Conditions 24–27;
- the Trustee lodged a formal submission dated 25 February 2026 concerning that amendment and provided supplementary material before determination; and
- the permit determined on 15 May 2026 amended Condition 23, deleted Conditions 24–27 and inserted Condition 27A.

1. Assessment and Decision Record

All documents recording or comprising:

- the final officer assessment, assessment report, recommendation, briefing or submission prepared for determination of the amendment;
- the documents and substantive attachments provided to the person who determined the amendment as part of the decision package;

- the final decision, approval or authorisation record; and
- the identity of the person who exercised the power to determine the amendment and the delegation or other instrument under which that power was exercised.

Where the applicable delegation or authority instrument is publicly available, identification of that instrument and the relevant provision will suffice.

2. Trustee Submission and Supplementary Material

The Trustee seeks DTP's documents recording the substantive assessment or treatment, within the amendment process, of the Trustee's formal submission dated 25 February 2026 and supplementary material provided before determination, including material provided on 10 March, 17 March, 30 March, 7 April and 12 May 2026.

This includes:

- any officer assessment, submissions assessment, response-to-submissions record, issues table, memorandum, briefing or file note addressing that material;
- any substantive internal or external referral of matters raised in that material, and any substantive response;
- any document recording a conclusion that a matter raised was accepted, rejected, resolved, already satisfied, outside the scope of the amendment, or otherwise did not require further consideration; and
- any summary or representation of the Trustee's submission or supplementary material provided to the recommending officer or decision-maker.

The Trustee does not seek duplicate copies of its own correspondence or attachments.

For identification purposes, the matters raised in that pre-determination material included the existing operation and satisfaction of Conditions 23–27; Condition 23(a) and NZS 6808:2010; the endorsed Noise Compliance Testing Plan and K15aa background assessment; DTP's previously communicated compliance position; and the relationship between the existing planning-permit framework and transition to regulation under the Environment Protection framework.

3. Basis for Amendment of Conditions 23–27

All documents prepared, obtained or substantively considered by DTP for the purposes of assessing or determining this amendment that record:

- the basis upon which existing Condition 23, including Condition 23(a), was considered capable of amendment;
- the basis upon which Conditions 24–27 were considered capable of deletion;
- any assessment of whether the existing requirements of Conditions 23–27 had been satisfied, completed or otherwise no longer required to remain in their existing form before the amendment;
- any assessment of the endorsed Noise Compliance Testing Plan or K15aa background assessment insofar as either was relevant to the preceding matters;
- any assessment of the Noise Management Plan or the status of the revised NCTP insofar as either was relied upon in the proposed transition from the existing permit conditions; and
- any EPA Victoria advice, position or other regulatory material substantively relied upon by DTP in determining that transition.

This part of the request is confined to documents connected with the assessment and determination of the amendment. It does not seek DTP's wider historical files concerning Condition 23, K15aa, the NCTP, the Noise Management Plan or EPA Victoria.

It also does not ask DTP to make a new determination as to whether Condition 23(a), Conditions 24–27, the NCTP or NZS 6808:2010 were satisfied.

4. Development of Final Amendment and Comparison with Exhibited Permit

For identification purposes, the amendment as proposed and exhibited sought amendment of Condition 23 and deletion of Conditions 24–27. The amendment proposal stated that no other conditions of the permit were sought to be altered.

The permit determined on 15 May 2026 included amended Condition 23, deletion of Conditions 24–27 and new Condition 27A.

The Trustee seeks:

- the final marked-up permit, comparison schedule, change table or other document recording the substantive differences between the permit/amendment as exhibited and the permit determined on 15 May 2026;
- the first substantive draft or document proposing the insertion of Condition 27A;
- any substantive document recording who proposed Condition 27A and the reason or regulatory purpose for its inclusion;
- any substantive DTP, applicant or EPA Victoria correspondence concerning the proposed inclusion or wording of Condition 27A;
- any document recording the substantive assessment, recommendation or approval of differences between the amendment as exhibited and the final permit;
- any document recording consideration of the change from the earlier detailed “THE PERMIT ALLOWS” description, including its express reference to two permanent meteorological monitoring facilities and associated equipment, to the planning-scheme clause-based description appearing in the permit determined on 15 May 2026;
- any document recording substantive consideration of the change in the Responsible Authority presentation between the exhibited/pre-amendment permit and the permit determined on 15 May 2026;
- any assessment of whether Condition 27A, or another substantive difference between the amendment as exhibited and the final permit, remained within the scope of the exhibited amendment or required further notice, exhibition, referral, consultation, consent or other procedural step; and
- the document recording approval of the final wording and form of the permit submitted for determination.

This part of the request does not seek every working draft, typographical amendment, formatting change or purely administrative revision.

5. Elaine Section of Lal Lal Wind Farm — Meteorological Monitoring Facilities

The Trustee seeks the following documents concerning meteorological monitoring facilities within the Elaine section of the Lal Lal Wind Farm:

- the final assessment, recommendation, approval, endorsement or decision record for any secondary consent concerning a meteorological monitoring facility within the Elaine section, including the secondary-consent process resulting in the amended Substation Layout Plan endorsed by DTP on 4 April 2024;

- the DTP letter and substantive DTP email correspondence concerning meteorological monitoring facilities within the Elaine section identified in Moorabool Shire Council FOI matter SR.139279;
- any plan, schedule, assessment, approval, endorsement or other substantive record forming part of those secondary-consent records which identifies the meteorological monitoring facilities within the Elaine section and records their status or basis under Planning Permit PL-SP/05/0461; and
- any document forming part of the assessment, recommendation or determination of amendment PL-SP/05/0461-3 that considered or reconciled the meteorological monitoring facilities within the Elaine section, or the relevant secondary-consent record, with the wording or description of the permit determined on 15 May 2026.

For avoidance of doubt, this part of the request is intended to capture the relevant DTP documentary record for all meteorological monitoring facilities within the Elaine section of the Lal Lal Wind Farm, rather than being confined to a particular mast or facility.

This part of the request seeks the identified secondary-consent and amendment records only. It does not seek DTP's complete historical file concerning meteorological monitoring facilities and does not ask DTP to make a new determination as to whether any particular facility was or was not authorised.

Timeframe

For documents created as part of the amendment process:

10 September 2025 to 15 May 2026.

An earlier document is within scope where it was substantively considered, relied upon, attached to, expressly incorporated into, or otherwise formed part of the assessment or decision record for the amendment.

The above timeframe does not restrict the specifically identified pre-existing documents sought under section 5 concerning the secondary-consent record for meteorological monitoring facilities within the Elaine section of the Lal Lal Wind Farm.

Clarifications

- “documents” includes emails and attachments, file notes, assessments, briefings, submissions, reports, decision records, plans, endorsements and substantive records of meetings;
- this request seeks existing documents and does not seek interpretive commentary, answers to questions, fresh analysis or creation of new documents;
- where one document responds to more than one part of the request, one copy is sufficient;
- routine acknowledgements, administrative transmittals, calendar invitations, meeting logistics and duplicate documents are excluded;
- submissions made by other members of the public are excluded;
- duplicate copies of material supplied by the Trustee are excluded, except where necessary to identify the version actually placed before the recommending officer or decision-maker;
- purely stylistic, typographical or formatting drafts are excluded;
- where relevant information appears within a larger document, the Trustee seeks the document as held, subject to lawful redaction;

- where section 25 of the Act applies, the Trustee seeks access to an edited copy with exempt or irrelevant matter deleted where practicable; and
- if DTP determines that a responsive document does not exist or cannot be located, the Trustee requests that the decision identify that outcome and provide a summary of the searches undertaken in accordance with the applicable FOI Professional Standards.

If DTP considers that further information is reasonably necessary to identify a document sought by this request, the Trustee is willing to consult concerning that document or category.

If DTP considers that processing a particular part of the request may engage section 25A(1) of the Act, the Trustee requests consultation in accordance with section 25A(6) before any refusal decision is made and is willing to consider targeted refinement of the identified source of processing burden.

Application fee

Please advise the appropriate mechanism for payment of the prescribed application fee.

Execution

Executed by

LEWIS TROJAN HORSE PTY LTD (ACN 693 680 509)
as Trustee of the **Owen Robert Inter Vivos Trust**